

M/s Kesarwani Sheetalaya & Ors. v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 9 October 2009 · Civil Misc. Writ Petition No. 2309 of 2009 (connected with Writ Petition No. 32927 of 2003) · **Writ Petition No. 2309 of 2009 allowed and the order dated 20/12/2008 directing connection of respondent no.4 to the independent feeder set aside; connected Writ Petition No. 32927 of 2003 (M/s Shiv Flour and Rice Mills) dismissed; parties to bear their own costs.**

HEADNOTE

The tapping conditions in Clause 3.4(d) of the U.P. Electricity Supply Code, 2005 are not confined to Arc/Induction furnaces, rolling, re-rolling and mini steel plants: on a conjoint reading Clause 3.4(d) governs supply through an independent feeder in both the category of Clause 3.4(a) and that of Clause 3.4(b), so that the consent of the original consumer, cost-sharing and technical feasibility must be satisfied before any fresh consumer is tapped into an independent feeder. A feeder emanating from a 132 KV sub-station for 11 KV supply to a group of consumers of a similar process on contiguous premises answers the definition of 'independent feeder' in Clause 2.2(ff) of the 2005 Code — which governs an order passed after the 2005 Code came into force, displacing the narrower 2002 definition — and a licensee that has throughout treated the feeder as independent (and levied the 15% independent-feeder charge) cannot resile from that position. Para 4.29 (use of a service line to supply other consumers) and Clause 3.4 (independent feeders) are distinct concepts to be read harmoniously; para 4.29 cannot be invoked to bypass the conditions of Clause 3.4, which would otherwise be rendered redundant. Where the original consumers had objected and never consented, a direction to connect a fresh consumer to their independent feeder — passed mechanically on a Minister's endorsement without application of mind and contrary to Clause 3.4 — is unsustainable.

FACTUAL SUMMARY

An 11 KV feeder emanating from the 132 KV Jhansi sub-station was originally built to supply M/s Phoolpur Sahkari Cold Storage. In 1979-80 the petitioners (M/s Kesarwani Sheetalaya and two others) were connected to that feeder with the cold storage's consent and on proportionate payment of its cost. Respondent no.4, M/s Shiv Flour and Rice Mills — already supplied through a rural feeder — sought connection to the same independent feeder, and the petitioners objected. The Executive Engineer first refused respondent no.4 (04/12/2008) citing Clause 3.4(d), but after respondent no.4 obtained an endorsement from the Energy Minister (17/12/2008) the Superintending Engineer directed the connection on 20/12/2008. The petitioners challenged that order and sought to restrain the tapping; respondent no.4's own writ petition of 2003 seeking the connection was heard and decided along with it.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::3.4(d)

Clause 3.4(d) governs tapping of an independent feeder in both the 3.4(a) and 3.4(b) categories, not only steel/furnace plants, and requires the original consumer's consent

QUESTION

Are the tapping conditions of Clause 3.4(d) confined to Arc/Induction furnaces, rolling, re-rolling and mini steel plants, or do they govern the tapping of any independent feeder including the Clause 3.4(b) category?

HOLDING

On a conjoint reading of Clause 3.4, sub-clause (d) governs supply through an independent feeder for both category (a) (Arc/Induction furnaces, rolling, re-rolling and mini steel plants of 1000 KVA and above) and category (b) (other cases, including townships/complexes and domestic, non-domestic or institutional loads above 500 KVA); its applicability cannot be restricted to steel/furnace plants. The conditions in sub-clause (d) — including the consent of the original consumer, cost-sharing and technical feasibility — must therefore be fulfilled before a fresh consumer is tapped in. Here the petitioners had never consented and had objected, so the direction to connect respondent no.4 was in breach of Clause 3.4(d); the order was also unsustainable because it was passed mechanically on the Energy Minister's endorsement, without application of mind and contrary to Clause 3.4. ¶ 6-12

QUALIFIER

The Corporation is bound to carry out a Minister's directions only where they are lawful and not contrary to a statutory provision; a direction contrary to Clause 3.4 need not be obeyed.

HOLDING-UNIT · UP-2005::2.2(ff)

A feeder supplying a group of similar-process consumers on contiguous premises is an 'independent feeder' under the 2005 definition, which governs, not the narrower 2002 definition

QUESTION

Does a feeder to which more than one consumer is connected qualify as an 'independent feeder', and which definition applies to an order passed in 2008?

HOLDING

Yes. Clause 2.2(ff) of the 2005 Code defines an independent feeder (for 11 KV supply) as one emanating from a 33 KV or higher sub-station for supplying a single consumer or a group of consumers having a similar process on the same or contiguous premises; a feeder shared by such a group therefore remains an independent feeder. As the impugned order was passed on 20/12/2008, after the 2005 Code came into force, the 2005 definition governs, and the narrower 2002 definition (2.2(aa) — single consumer) relied on by the respondents does not apply. The Corporation, having throughout treated the cold-storage feeder as independent — in its 1979 letters and by levying the 15% independent-feeder charge in the bills — could not take a contrary stand. ¶ 9-11

HOLDING-UNIT · UP-2005::4.29(b)

Para 4.29 (service line) cannot be invoked to bypass the independent-feeder tapping conditions of Clause 3.4

QUESTION

Can the licensee rely on para 4.29 (a service line owned by the Corporation may be used to supply other consumers) to connect a fresh consumer to an independent feeder without satisfying Clause 3.4?

HOLDING

No. 'Service line' (Clause 2.2(vv)) and 'independent feeder' are distinct concepts, and paras 4.29 and 3.4 must be given a harmonious construction so that both survive. If para 4.29 were read to allow the licensee to use a consumer's service line/independent feeder to supply others in disregard of Clause 3.4, the conditions of Clause 3.4 would be rendered redundant. Para 4.29 therefore in no manner dilutes the conditions required for supply through an independent feeder under Clause 3.4. ¶ 11

FLAG The judgment refers to 'para 4.29' without a sub-clause; keyed to 4.29(b), the corpus's existing key for the service-line-usable-for-other-consumers proposition.

PRINCIPLE TAGS

clause-3.4d-tapping-conditions-govern-both-3.4a-and-3.4b A conjoint reading of Clause 3.4 shows that sub-clause (d) governs tapping of an independent feeder in both category (a) (Arc/Induction furnaces, rolling/re-rolling/mini steel plants) and category (b) (townships/complexes, domestic, non-domestic, institutional); its conditions are not confined to steel/furnace plants and must be satisfied before any fresh consumer is tapped in. ¶ 7-8

independent-feeder-original-consumer-consent Tapping of an independent feeder requires the consent of the original consumer(s) who bore its cost. Here the petitioners had objected and never consented, so the direction to connect respondent no.4 to their cold-storage independent feeder was in breach of Clause 3.4(d). ¶ 8

para-4.29-service-line-cannot-bypass-clause-3.4-independent-feeder-conditions 'Service line' (Clause 2.2(vv)) and 'independent feeder' are separate concepts; paras 4.29 and 3.4 are harmonised so that para 4.29 cannot be used to supply other consumers through an independent feeder while bypassing the Clause 3.4 conditions, which would otherwise be rendered redundant. ¶ 11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ENERGY MINISTER'S ENDORSEMENT DATED 17/12/2008 DIRECTING THE CONNECTION WAS WITHOUT AUTHORITY OR JURISDICTION

The petitioners contended the Minister had no authority over the Corporation's day-to-day functioning; the Court found it unnecessary to decide, since the Corporation is bound only by lawful directions not contrary to statute and the direction here was in any event contrary to Clause 3.4. ¶ 11

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>U.P. State Electricity Board v. Smt. Lakshmi Devi Sehgal & Anr.</i> AIR 1977 All 499 Allahabad High Court	Under the Electricity (Supply) Act, 1948, a distinction is drawn between a 'main transmission line' and a 'service line'; a prospective consumer bears only the cost of the service line, a transformer is not part of the service line, and once supply has commenced the Board must maintain the service line.	Cited by the respondents; the Court held it not relevant to the present controversy on the tapping of an independent feeder under the 2005 Code. ¶ 10-11	Respondent	Distinguished